

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**DECLARATION OF MARC MOSZKOWSKI REGARDING STRATEGIC
ELDER ABUSE THROUGH MISUSE OF JUDICIAL PROCESS**

COMES NOW Defendant, Marc Moszkowski, pro se, and respectfully submits this Declaration to place on the record a critical and previously unaddressed dimension of the conduct in the above-captioned litigation: the systemic and sustained misuse of judicial process to impose psychological, financial, physical, and procedural harm upon an elder litigant in violation of the spirit—if not the letter—of protections afforded under Florida and federal law.

I. Status as an Elder under Florida Law

1. I am 71 years of age, physically incapacitated due to two large, untreated abdominal hernias, and have lived in total geographic and

social isolation since 2017.

2. Under Florida Statutes §825.101(4), I qualify as an “*elderly person*,” being over 60 and suffering from physical limitations and infirmities of aging, as well as being functionally impoverished and socially vulnerable.
3. I have no family or local support network and subsist on a modest pension with no discretionary income. My only asset—my inherited home—was seized through a foreign judgment orchestrated by Plaintiffs’ shareholder associate based on misrepresented evidence, as detailed in prior filings.

II. Pattern of Litigation as a Tool of Strategic Elder Abuse

4. Since 2018, I have been subjected to a cascading series of abusive, contradictory, and often incoherent legal actions—both in Florida and in France—initiated by DeepGulf, Inc. and its Chairman, Rustin Howard, with the assistance of a litigation ally, David Rumsey.
5. These proceedings have been characterized by:
 - Factual fabrications and evidentiary forgeries;
 - Use of expired, defunct, or foreign entities to manufacture jurisdiction or obstruct removal;

- Withholding of corporate records and salary commitments long known to Plaintiffs;
- Subversion of federal H1-B wage protections and retaliatory framing of back pay as unjust enrichment;
- Collusive manipulation of third-party actors to strip me of my property and render me unable to fund any defense.

6. I have now filed 171 pleadings in this case, including fully substantiated factual rebuttals, constitutional arguments, and formal objections. As of this writing, the Court has acknowledged virtually none of them on the merits.

7. This judicial disregard enables the very pattern it should curtail, allowing procedural default and silence to mask what is functionally strategic elder abuse through misuse of judicial process.

III. Legal and Ethical Basis for Recognition

8. Florida Statute §825.103 prohibits exploitation of an elderly person through deception, intimidation, or undue influence.

9. The Elder Justice Act (42 U.S. Code §1397j and following) affirms that abuse and exploitation may occur not only through physical harm, but

also through financial deprivation and willful disregard of protective mechanisms.

- 10.** The present case involves not merely a private dispute, but the systemic deployment of legal tools to exhaust, impoverish, isolate, and silence an elder litigant already weakened by health, geography, and the cumulative toll of seven years of litigation.

IV. Request for Recognition

- 11.** I respectfully request that this Declaration be entered into the record as part of the evidentiary and ethical context of this matter.
- 12.** I further request that the Court consider whether continued disregard of my filings—despite their volume, factual support, and procedural relevance—may itself constitute institutional participation in a form of strategic elder abuse in contravention of the principles underlying Florida’s elder protection laws and federal human rights obligations.

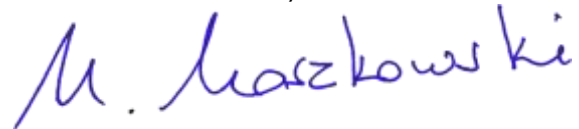
Respectfully submitted this 15th day of July, 2025.

Marc Moszkowski, Pro Se

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Le Verdos

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CERTIFICATE OF SERVICE

I hereby certify that, on this 15th day of July, 2025, a copy of this Declaration has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

